

Whangarei District Council Meeting Minutes

Date: Thursday, 27 June, 2024
Time: 9:00 a.m.
Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich (Teams)

Not in Attendance

Cr Ken Couper
Cr Nicholas Connop
Cr Jayne Golightly

Scribe

D.Garner (Democracy Adviser)

Administrative matters

- Meeting livestreamed
- Withdrawn – Confidential Item 8.3 - Future use of the Old Municipal Building
- Supplementary reports:
 - 4.1 Public Forum speaker

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a prayer.

2. Declarations of Interest / Take Whaipānga

No declarations of interest were made.

3. Apologies / Kore Tae Mai

Cr's Ken Couper and Jayne Golightly (absent) and Nicholas Connop (late arrival).

Moved By Cr Deborah Harding

Seconded By Cr Gavin Benney

That the apologies be sustained.

Carried

4. Public Forum / Huihuinga-a-tangata

4.1 Public Forum - June 2024

Fiona Green - Crime Prevention Matters.

5. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting held 23 May 2024

Moved By Cr Carol Peters

Seconded By Cr Patrick Holmes

That the minutes of the Whangarei District Council meeting held Thursday 23 May 2024, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting, subject to the following correction: Refer item 1.4 of the confidential agenda – correction of Division column from ‘Abstain’ to ‘Against.’

Carried

5.2 Minutes Extra ordinary Whangarei District Council meeting 29 May 2024

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That the minutes of the Extra ordinary Whangarei District Council meeting held Wednesday 29 May 2024, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting, subject to the following corrections:

Refer item 5.2, page 21 typographical error ‘Cr Simond Reid’ corrected to ‘Cr Simon Reid.’

Refer item 5.2, page 32 Procedural motion, typographical error ‘6 to 6’ corrected to ‘5 to 6.’

Carried

5.3 Minutes Whangarei District Council 18 June 2024

Moved By Cr Marie Olsen

Seconded By Cr Carol Peters

That the minutes of the Whangarei District Council meeting held Tuesday 18 June 2024, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. Information Reports / Ngā Pūrongo Kōrero

6.1 Civic Centre Project Recognition

Moved By Cr Carol Peters

Seconded By Cr Scott McKenzie

1. That Council notes the positive recognition that Te Iwitahi has received.
2. That Council shows on public display the awards credited to the building and thank the personnel involved.

Carried

Cr's Simon Reid and Paul Yovich abstained from voting on Item 6.1.

6.2 Water Supply Fluoridation – Progress Update June

Moved By Cr Gavin Benney

Seconded By Cr Simon Reid

That the Council notes:

1. That the dates for completion of the fluoridation work at the Whau Valley, Ruddells, Ruakaka and Ahuroa water treatment plants has been pushed back until 28th March 2025.
2. That to meet the completion date fluoride will be added to these water supplies from the last week in February 2025.

Carried

7. Decision Reports / Whakatau Rīpoata

7.1 Northland Forward Together - Revised strategic collaboration document

Moved By Cr Carol Peters

Seconded By Cr Deborah Harding

That the Council:

1. Notes the report.

2. Adopt *Northland Forward Together I Te Taitokerau Kōkiri Ngātahi* as the shared strategic collaboration document for Northland Local Government (Attachment 1).
3. Approve His Worship the Mayor Vince Cocurullo to sign *Northland Forward Together I Te Taitokerau Kōkiri Ngātahi*.

Carried

7.2 Local Water Done Well - Overview of the Local Government (Water Services Preliminary Agreements) Bill

Moved By Cr Scott McKenzie

Seconded By Cr Simon Reid

That the Council:

1. Notes the report;
2. Notes information regarding the Local Government (Water Services Preliminary Arrangements) Bill, and the key principles of Local Water Done Well;
3. Supports the overall direction of Council individually, and jointly with other councils investigating service delivery options that may meet the overall principles of Local Water Done Well;
4. Supports regional collaboration with this initiative through the Mayoral Forum, with regular reporting to Council.

Carried

7.3 2024 Rates Remission and Postponement and Early Payment of Rates Policies

Moved By Cr Simon Reid

Seconded By Cr Patrick Holmes

That Council adopts the rates remission and postponement policy, as required under Sections 85-90 and 109-110 of the Local Government (Rating) Act 2002 and Schedule 11 of the Local Government Act 2002; and the early payment of rates policy, as required under Section 55 of the Local Government (Rating) Act 2002.

Carried

7.4 2024 Significance and Engagement Policy Adoption

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the Council:

1. Adopts the revised Significance and Engagement Policy (Attachment 1), to replace the Council's existing policy.
2. Delegates to the Chief Executive the ability to make minor editorial changes to the revised Significance and Engagement Policy, if required.

Carried

7.5 2024-25 Fees and Charges

Moved By His Worship the Mayor

Seconded By Cr Marie Olsen

That Whangarei District Council:

- a. Adopt the fees and charges listed in **Table A**, as follows and as per attachment 1: *Statement of Proposal: Fees and Charges 2024-25*.

These fees were consulted on and deliberated as part of the 2024-34 Long Term Plan process, as required under the Special Consultative procedure under the Local Government Act 2002.

Table A: 2024-25 Fees and charges subject to the Special Consultative Procedure

	Refer Statement of Proposal
Bylaw Enforcement	Page 6
Drainage (Wastewater and Trade Waste)	Page 3-5
Food Premises	Page 7-9
Gambling and Racing Act	Page 10
Health Act Registered Premises	Page 11-12
Public Places Bylaw	Page 12
Resource Management Act Resource Management Administrative charges Council Professional Fees Monitoring and Land Use District Plan/Private Plan Changes Abatement notices	Page 13-22
Rubbish Disposal	Page 22-24
Water Supply	Page 25-27

- b. Authorises the Chief Executive to make minor amendments, drafting, typographical or presentation corrections necessary to the 2024-2025 Fees and Charges document.

Carried

7.6 Adoption of the Treasury Risk Management Policy 2024 (including the Liability Management Policy and Investment Policy)

Moved By Cr Patrick Holmes

Seconded By Cr Deborah Harding

That the Council adopts the Treasury Risk Management Policy which includes:

- a. The Liability Management Policy
- b. The Investment Policy.

Carried

7.7 Easter Sunday Shop Trading Policy - Readoption

Moved By Cr Gavin Benney

Seconded By Cr Simon Reid

That Council:

- 1. Continues the Easter Sunday Shop Trading Policy (the Policy, Attachment 1) without amendment.
- 2. Authorises the Chief Executive to approve any necessary minor drafting or presentation amendments to the Policy to correct errors or omissions, or to reflect decisions made by Council at this meeting, prior to final publication.

Carried

Cr Carol Peters requested her vote against be recorded.

7.8 Psychoactive Substances Policy - Revocation

Moved By Cr Scott McKenzie

Seconded By Cr Carol Peters

That Council revokes the Psychoactive Substances Policy (Attachment 1) with effect from 28 June 2024.

Carried

Cr Paul Yovich left the meeting at 9:48am during discussion on Item 7.8.

7.9 Te Tai Tokerau Regional Accessibility Strategy

Moved By Cr Carol Peters

Seconded By Cr Phoenix Ruka

That the Council:

1. Receives the Te Tai Tokerau Regional Accessibility Strategy report.
2. Adopts the Te Tai Tokerau Regional Accessibility Strategy, a joint approach to accessibility developed by the Far North, Kaipara, Whangarei District Council's and the Northland Regional Council.
3. Directs staff to develop an implementation plan specific to Whangarei District Council, that maps out actions within the strategy.

Carried

7.10 Adoption of the Parua Bay and Waipu Placemaking Plans

Moved By Cr Patrick Holmes

Seconded By Cr Simon Reid

That the Council:

1. Adopts the Parua Bay Placemaking Plan 2024 (Attachment 1).
2. Adopts the Waipu Placemaking Plan 2024 (Attachment 2).
3. Authorises the Chief Executive to make any minor amendments to the Parua Bay and Waipu Placemaking Plans prior to publication.

Carried

7.11 Northland Event Centre (2021) Roof Replacement Options

Moved By Cr Carol Peters

Seconded By Cr Gavin Benney

That the Council:

1. Receives the report Northland Events Centre Roof Replacement Options.
2. Directs staff to proceed with option 3 which proposes a mono-pitch structure, with the advantage of a reduction in construction costs, potential for increased Heating, Ventilation and Air Conditioning (HVAC) efficiency and remains true to the cultural narrative.

3. Approve staff to develop a Procurement plan for option 3.

Amendment

Moved By Cr Phil Halse

Seconded By Cr Simon Reid

That the Council:

1. Receives the report Northland Events Centre Roof Replacement Options.
2. Directs staff to proceed with option 3 which proposes a mono-pitch structure, with the advantage of a reduction in construction costs, potential for increased Heating, Ventilation and Air Conditioning (HVAC) efficiency and remains true to the cultural narrative.
3. Approve staff to develop a Procurement plan for option 3.
4. That the Whangārei District Council caps the total spend of the project at \$10.2 million.

On the amendment being put Cr Phil Halse called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich			X
Results	10	0	1

**The amendment was Carried (10 to 0)
and subsequently Carried
as the substantive Motion**

Cr Paul Yovich rejoined the meeting at 10:27am during discussion on Item 7.11.

7.12 Future of Severely Affected Land Programme (FOSAL)

Moved By His Worship the Mayor

Seconded By Cr Marie Olsen

That the Council:

1. Notes that while a detailed assessment/consultation has not been undertaken in relation to Future of Severely Affected Locations Programme, information held by Council does not indicate properties that would qualify for Category 3 within the district.
2. Opts out of the Government's Future of Severely Affected Locations programme, notifying the Minister of its decision.

Carried

A break was taken from 10:40am to 11:00am following Item 7.12.

8. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 23 May 2024	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Civic Honours Selection Committee – Approval of Minutes and Recommendations		
1.3	Future use of Old Municipal Building		

1.4	Litigation Update	
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This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons stated in the open minutes	
1.2	To protect the privacy of natural persons including that of a deceased person.	Section 7(2)(a)
1.3	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(h) Section 7(2)(i)
1.4	To maintain legal professional privilege.	Section 7(2)(g)

9. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting with prayer at 11:19am.

Confirmed this 25th day of July 2024

His Worship the Mayor Vince Cocurullo (Chairperson)